

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 09
JUDICIAL OFFICER: JOHN P DEVINE
HEARING DATE: 12/15/2025

ALL REMOTE APPEARANCES WILL BE BY ZOOM

For matters where an appearance is required, the parties may appear by Zoom unless told to appear by another method. For all other matters, if argument is requested, appearances may be by Zoom or in person

Please email Dept09@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1602392251?pwd=WmE4bG5iK0J3WWtTOHpteVBjRlBMQT09>

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02032

CASE NAME: TRENT ORMSBY VS. JEFFREY HULL

*HEARING ON MOTION IN RE: AND NTC TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT IF ENTERED.

FILED BY: HULL, JEFFREY SCOTT

TENTATIVE RULING:

Defendant Jeffrey Scott Hull's motion to set aside default is **denied without prejudice**.

According to the Notice of Motion, Defendant seeks relief from default pursuant to CCP § 473(b). In the body of the motion, however, Defendant asserts that he is proceeding under Civil Code § 1788.61. Civil Code § 1788.61 does not provide a basis to set aside the default entered in this action, as that statute applies only to collection actions brought by a debt buyer. Thus, the only potentially applicable authority on this motion is CCP § 473(b).

A party may seek relief under CCP § 473(b) due to "mistake, inadvertence, surprise, or excusable

neglect.” (CCP § 473(b).) However, an application for relief from default under § 473 must be made “within a reasonable time but in no instance exceeding six months after the judgment, dismissal, order, or proceeding was taken.” (*Id.*; *People v. The North River Ins. Co.* (2011) 200 Cal.App.4th 712, 721.) This six-month limit is jurisdictional, and the court has no authority under section 473(b) to excuse noncompliance with that deadline. (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 345.)

Although the motion references a later date, default was actually entered against Defendant Hull (as well as Defendant CBE Electric Company dba CB Construction & Design) on August 27, 2024. Accordingly, any request for relief under § 473(b) had to be filed no later than February 27, 2025. Defendant filed the present motion on August 25, 2025. Plaintiff opposes the motion but does not assert that it is time-barred; however, the six-month deadline is jurisdictional. Because the motion was filed more than six months after default was entered, Defendant cannot obtain discretionary relief under CCP § 473(b).

Equitable relief may still be available on grounds of extrinsic mistake, as such relief is not governed by the six-month time limit applicable to motions under CCP § 473(b). (*Olivera v. Grace* (1942) 19 Cal.2d 570, 576; *Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1300.) To obtain equitable relief, a party must show: (1) a meritorious defense, (2) a satisfactory excuse for not presenting that defense, and (3) diligence in seeking to set aside the default once discovered. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982.)

The Court has not considered whether equitable relief might be available, as Defendant does not seek such relief in this motion.

As with all self-represented litigants, Defendant may wish to consult with an attorney regarding this matter.

2. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. DOES 1 THROUGH 50, INCLUSIVE
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:
TENTATIVE RULING:

This matter is continued to January 15, 2026, at 9 a.m. in Department 39.

A case management conference is scheduled in Department 39 for February 20, 2026, at 8:30 a.m. The case management conference presently set in Department 9 for March 13, 2026 at 8:30 a.m. is vacated.

Department 39 is re-assigned to this case for all purposes on December 15, 2025.